

Judge McMahon

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

11 CIV 5140

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JACOB STEPAN,

Plaintiff.

COMPLAINT
AND DEMAND FOR
JURY TRIAL

-against-

THE CITY OF NEW YORK and POLICE
OFFICER HENRY KO, POLICE OFFICER
JOSEPH BONNER, POLICE OFFICER
ROBINSON MARTINEZ, POLICE
OFFICER ASIF IQBAL AND POLICE
OFFICER JOHN DOE, Individually and in
their Official Capacities,

Defendants.
-----X



Plaintiff, JACOB STEPAN, by and through his attorneys, **Fisher, Byrialsen & Kreizer, PLLC**,
complaining of the defendants herein, respectfully shows the Court and alleges:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1981, 1983, and 1988, for the wrongful acts of Defendants THE CITY OF NEW YORK and POLICE OFFICERS HENRY KO, JOSEPH BONNER, ROBINSON MARTINEZ, POLICE OFFICER ASIF IQBAL AND POLICE OFFICER JOHN DOE, as Officers of the New York City Police Department, acting under color of state law and pursuant to their authority, in violation of Plaintiff's rights secured by the Civil Rights Act of 1871, 42 U.S.C. §§ 1981, 1983, 1988; by the United States Constitution, including its Fourth, Fifth, Eighth, and Fourteenth Amendments; and by the laws and Constitution of the State of New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1981, 1983, and 1988, and the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, and the constitutional, statutory, and common laws of the State of New York.

3. Jurisdiction is invoked herein pursuant to the aforementioned statutory and constitutional provisions and pursuant to 28 U.S.C. §§ 1331, 1343, this being an action seeking redress for the violation of the plaintiff's constitutional and civil rights.

4. Plaintiff further invokes this Court's pendent jurisdiction over any and all state-law claims and causes of action which derive from the same nucleus of operative facts that give rise to the federally based claims and causes of action pursuant to 28 U.S.C. § 1367.

VENUE

5. Venue is properly laid in this District under 28 U.S.C. § 1391(b), this being the District in which the claim arose.

TRIAL BY JURY

6. Plaintiff demands a trial by jury on each and every one of his claims as pled herein pursuant to Fed. R. Civ. P.38(b).

PARTIES

7. At all times relevant hereto Plaintiff was and is a resident of Randolph, New Jersey.

8. At all times relevant hereto defendant THE CITY OF NEW YORK (hereinafter, "NYC") was and is a municipality of the State of New York and owns, operates, manages, directs, and controls the New York City Police Department, which employs the other named Defendants.

9. At all times relevant to this action, Defendants POLICE OFFICERS HENRY KO, JOSEPH BONNER, ROBINSON MARTINEZ, ASIF IQBAL, AND POLICE OFFICER JOHN DOE are and were police officers employed by the New York City Police Department (hereinafter, "NYPD"), and acting under color of state law. They are being sued in both their individual and official capacities.

10. At all times relevant hereto and in all their actions described herein, the Defendants POLICE OFFICERS HENRY KO, JOSEPH BONNER, ROBINSON MARTINEZ, AND ASIF IQBAL AND POLICE OFFICER JOHN DOE were acting under color of statutes, ordinances, regulations, policies, customs, and usages of the NYPD and NYC, pursuant to their authority as employees, servants, and agents of the NYPD within the scope of employment and incidental to their otherwise lawful duties and functions as employees, servants, agents, and police officers.

11. NYC was responsible for the hiring, training, supervision, discipline, retention, and promotion of the police officers, sergeants, and/or employees of the NYPD. They are being sued both in their individual and official capacity.

FACTS

12. On May 13, 2010, Mr. Stepan attended a business meeting over dinner at a restaurant in Manhattan, New York.

13. Early in the night, Mr. Stepan promised his friend that he would be the designated driver.

14. At the end of the business meeting at or around 12:00 a.m., Mr. Stepan and his friend retrieved the car from a parking garage and Mr. Stepan began to drive back to New Jersey where both men reside.

15. At or around 1:00 a.m., Mr. Stepan was driving southbound on 9th Avenue in the city, state and county of New York.

16. At 1:10 a.m., he was stopped by Defendants for allegedly weaving and entering the lane immediately to Mr. Stepan's right without first using his signal.

17. As soon as Mr. Stepan became aware that the Officers were pulling him over, Mr. Stepan turned onto West 41st Street so that he could park in a safe location away from traffic.

18. When Officer Ko came to Mr. Stepan's window, Mr. Stepan gave the Officer his license and registration upon request.

19. Mr. Stepan then explained to the Officer that he was not the owner of the automobile but was the designated driver as his friend, sitting beside him, was the owner of the vehicle and had had a few drinks earlier in the night.

20. Defendants then asked Mr. Stepan to take a field sobriety test.

21. Without hesitating, Mr. Stepan agreed to take the test.

22. Mr. Stepan exited the vehicle and performed a straight line walking test as instructed by the Defendant Officer.

23. After completing this test, Mr. Stepan was instructed to wait in the vehicle so that the officer could process his paperwork.

24. At 1:40 a.m, after being detained for approximately twenty minutes and subjected to various tests by the Defendants, Mr. Stepan was asked to take a Breathalyzer test by the Defendant Officer.

25. Mr. Stepan acknowledged that he would be willing to take it if he could first speak to his friend in the passenger seat of the car, who was his attorney.

26. When Mr. Stepan's friend attempted to exit the car in order to advise Mr. Stepan, as his attorney, the Defendants kicked shut the friend's car door to prevent him from exiting the vehicle and to stop him from speaking with Mr. Stepan.

27. At 2:11 a.m., Mr. Stepan was placed in handcuffs by Officer Ko, and was transported to the seventh precinct in the police vehicle.

28. At the precinct, the Defendants asked Mr. Stepan to submit to an Intoxilyzer test.

29. At 3:41 a.m., on videotape, Mr. Stepan articulately repeated his prior answer, stating, "I would like to consult an attorney before I do such a thing...and would be happy to take the test if he advises me to do so."

30. The Defendants allowed Mr. Stepan to contact his attorney, however Mr. Stepan was unable to reach him and could only leave a message.

31. At 3:54 a.m., the Officers again asked Mr. Stepan to submit to an Intoxilyzer test.

32. Again, Mr. Stepan stated that while he was willing to take the test after he had an opportunity to consult with his attorney, he was not prepared to take the test at that time as he had not had such an opportunity.

33. At approximately 3:54 a.m., two hours and forty-four minutes after Mr. Stepan was originally detained, the Defendants recorded Mr. Stepan's request to speak to his attorney as a refusal.

34. Mr. Stepan was then taken to Central Booking and eventually arraigned after being held in custody for twenty-four hours.

35. Plaintiff was charged with VTL § 1192.3 and VTL § 1192.1.

36. Plaintiff made eight court appearances until the case proceeded to trial on April 6, 2011.

37. Mr. Stepan spent \$9,000 in legal fees to defend himself against these charges.

38. During these court proceedings, Mr. Stepan's license was suspended for thirteen days.

39. At the completion of the bench trial, the judge found Mr. Stepan not guilty on all counts and ordered his case be dismissed and sealed.

40. Mr. Stepan suffered from emotional distress due to the trauma of the events that transpired on May 13, 2010 at the hands of the Defendants' misconduct and due to the humiliation and hardships he endured after his license was suspended.

41. On or about May 9, 2011 and within ninety (90) days of the incident, a Notice of Claim on behalf of Plaintiff was served upon NYC.

42. At least thirty (30) days have elapsed since said demand and/or claim upon which this action is in part predicated was presented to NYC for adjustment and NYC has neglected and/or refused to adjust and/or make payment.

43. This action is commenced within one (1) year and ninety (90) days of the occurrence herein.

**FIRST CLAIM FOR RELIEF:
DEPRIVATION OF FEDERAL CIVIL RIGHTS**

44. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if fully set forth herein.

45. All of the aforementioned acts of Defendants, their agents, servants, and employees were carried out under color of state law.

46. All of the aforementioned acts deprived PLAINTIFF STEPAN of the rights, privileges, and immunities guaranteed citizens of the United States by the Fourth, Fifth, Eighth,

and Fourteenth Amendments to the Constitution of the United States and in violation of 42 U.S.C. § 1983.

47. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

48. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

49. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

50. By these actions, these Defendants have deprived Plaintiff of rights secured by the Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983, for which the Defendants are individually and jointly liable.

**SECOND CLAIM FOR RELIEF:
FALSE ARREST**

51. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if fully set forth herein.

52. As a result of Defendants' aforementioned conduct, Plaintiff was subject to an illegal, improper, and false seizure and arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated, and prosecuted by the Defendants in criminal proceedings, without any probable cause, privilege, or consent.

53. As a result of his false arrest, Plaintiff was subjected to severe emotional distress, humiliation, ridicule, and disgrace and was deprived of his liberty.

54. All of the aforementioned acts of the Defendants constituted false arrest under the laws of the State of New York and the Defendants are liable for said damage. Pursuant to 28 U.S.C. § 1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

**THIRD CLAIM FOR RELIEF:
FALSE IMPRISONMENT**

55. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if fully set forth herein.

56. As a result of his false imprisonment, Plaintiff was subjected to severe emotional distress, humiliation, ridicule, mental anguish and disgrace and was deprived of his liberty.

57. All of the aforementioned acts of the Defendants constituted false imprisonment under the law of the State of New York and the Defendants are liable said damage. Pursuant to 28 U.S.C. § 1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

**FOURTH CLAIM FOR RELIEF:
MUNICIPAL LIABILITY**

58. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

59. The acts complained of herein were carried out by the Defendants POLICE OFFICERS HENRY KO, JOSEPH BONNER, ROBINSON MARTINEZ, ASIF IQBAL AND POLICE OFFICER JOHN DOE in their capacities as police officers, employees and officials pursuant to the customs, policies, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said departments.

60. Prior to May 13, 2010, NYC and NYPD developed and maintained policies or customs exhibiting deliberate indifference to the Constitutional rights of persons in NYC, which caused the violation of Plaintiff Stepan's rights.

61. It was the policy and/or custom of NYC and NYPD to inadequately and improperly train and supervise its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers.

62. It was the policy and/or custom of NYC and NYPD to inadequately and improperly investigate complaints of misconduct against police officers filed by people in police custody, and acts of misconduct were instead tolerated by NYC, including, but not limited to the following incidents: assault and battery, harassment, negligence, intentional infliction of emotional distress.

63. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD constituted deliberate indifference to the safety, well-being, and constitutional rights of Plaintiff Jacob Stepan.

64. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

65. The foregoing customs, policies, usages, practices, procedures, and rule of NYC and the NYPD were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.

66. As a result of the above described policies and customs, police officers of NYPD, including the defendant officers, believed that their actions would not be monitored by

supervisory officers and that their own misconduct would not be investigated or sanctioned, but instead would be tolerated.

67. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff.

68. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate officers and were directly responsible for the violation of Plaintiff's constitutional rights.

69. Defendants NYC, as municipal policymakers in the training and supervision of Defendant police officers/employees, have pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violations of their freedom from deprivation of Liberty without Due process of law in violation of the Fourth, Fifth, Eighth, and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983, and the Constitution and laws of the State of New York.

70. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;
- b. To be free from unreasonable search and seizure under the Fourth and Fourteenth Amendments to the United States Constitution;
- c. To be protected against violations of his civil and constitutional rights;
- d. Not to have cruel and unusual punishment imposed upon him; and
- e. To receive equal protection under the law.

**FIFTH CLAIM FOR RELIEF:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

71. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

72. Defendants POLICE OFFICERS HENRY KO, JOSEPH BONNER, ROBINSON MARTINEZ, ASIF IQBAL AND JOHN DOE engaged in extreme and outrageous conduct beyond all possible bounds of decency when they harassed and falsely arrested Plaintiff Stepan.

73. Defendants' extreme and outrageous conduct was intended to inflict severe distress upon Plaintiff Stepan.

74. Defendants POLICE OFFICERS HENRY KO's, JOSEPH BONNER's, ROBINSON MARTINEZ's, ASIF IQBAL's AND POLICE OFFICER JOHN DOE's outrageous conduct did inflict severe distress upon Plaintiff Stepan, which caused Plaintiff Stepan to suffer anxiety and mental anguish.

75. All of the aforementioned acts of the Defendants constituted intentional infliction of emotional distress under the law of the State of New York and the Defendants are liable for said damage. Pursuant to 28 U.S.C. § 1367, this Court has pendant jurisdiction to hear and adjudicate such claims.

**SIXTH CLAIM FOR RELIEF:
MALICIOUS PROSECUTION**

76. Plaintiff repeats and reiterates the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.

77. By the actions described above the defendants maliciously and without probable cause, prosecuted the Plaintiff. The acts and conduct of the defendants were the direct and

proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

78. As a result of the foregoing, Plaintiff was deprived of his liberty, suffered loss of substantial wages, great humiliation, costs and expenses, and was otherwise damaged and injured.

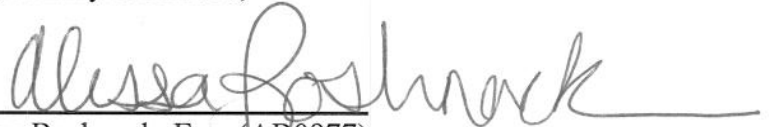
PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment and prays for the following relief, jointly and severally, against the Defendants:

1. Special and compensatory damages in the amount of TWO HUNDRED THOUSAND DOLLARS (\$200,000.00) DOLLARS; and
2. Punitive damages in the amount of FIVE HUNDRED THOUSAND DOLLARS (\$500,000.00) DOLLARS; and
3. Reasonable attorney's fees and costs; and
4. Such other and further relief as this Court deems just and proper.

DATED: New York, New York
July 26, 2011

Respectfully submitted,



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